

States **GUJARAT**

Judges ON TRIAL

The Gujarat High Court takes the lead in cleaning up the judicial system by forcing 17 judges to retire

| By Uday Mahurkar |

Gujarat's development model is held up as an example to the rest of the country, but one model that's earning a rather different reputation is its judiciary. Consider this:

► A few months ago, a lower court judge was dismissed for manipulating court records. He would give a hearing date to the contesting parties and then advance the hearing by quietly changing the date in the original records. He would then inform only one of the parties from whom he had taken a bribe about the new date. Unaware of the change, the other party would naturally fail to turn up for the hearing, allowing the crooked judge to give his verdict in favour of the party which had paid him.

► Last year, a fast-track court judge sentenced seven persons to seven years' imprisonment in a case of attempt to murder. Investigations revealed that he had allegedly demanded Rs 7 lakh to set them free. The judge, it later transpired, operated through a village sarpanch, who in turn dealt with the judge's wife—who was a lawyer—so the judge himself could claim innocence.

► A high court judge who has been transferred had an equally unique modus operandi. His daughter, a lawyer in the same court, would take Rs 5 lakh for getting a favourable judgement in cases being heard by her father. After taking the amount, that would be shown as fees from the

client, she would entrust the case to a fellow lawyer and inform her father (the judge) who in turn would give the required judgement.

► Judicial corruption usually involves lawyers as well and Gujarat's case is no different. A senior Gujarat High Court judge, known for his integrity, was shocked last year when he learnt that a leading lawyer had taken Rs 5 lakh from a client apart from his regular fee on the pretext that he had to pay the money to the judge to get a favourable verdict.

While the judicial system in Gujarat is a mirror of what happens in the rest of the country, it has now taken the lead in acting against corruption and manipulation in the courts. The Gujarat High Court, led by Chief Justice K.S. Radhakrishnan with active support of the state Government, sent out a strong message when it forced 17 lower court judges to retire in May on grounds of inefficiency and corruption under the newly framed judicial service rules based on the recommendations of the first National Judicial Pay Commission set up in 1996. It is being seen as the first major step towards curbing inefficiency and corruption in the judiciary and it has come not a day too soon.

As expected, the step sent shock waves through the legal fraternity. One of the judges, K.C. Kella, principal district judge, Porbandar, reportedly punished for his rude behaviour and negative attitude towards litigants, suffered a stroke, apparently out of shock. Kella may



(CLOCKWISE FROM ABOVE) KELLA; RADHAKRISHNAN WITH THE CJI; GUJARAT JUDGES AT A FUNCTION

have had a behaviour problem but he was also known for his integrity. While many in the legal fraternity sympathise with him, they have also welcomed the crackdown as a step in the right direction, even demanding that the drive should be extended to the higher judiciary. Says P.P. Bhatt, the registrar of the Gujarat High Court, who played a key role in the exercise: "A detailed inquiry looking at the efficiency, integrity and the conduct of judges was carried out by the Gujarat High